COMMERCIAL LEASE AGREEMENT

74 Amity Street

THIS LEASE AGREEMENT (hereinafter referred to as the "Lease") is made and entered into this 1st day of January, 2024 (the "Effective Date"), by and between:

LANDLORD: Amity Holdings LLC, a New York Limited Liability Company, with its principal place of business located at 1290 Avenue of the Americas, New York, NY 10104 (hereinafter "Landlord").

TENANT: Amazon.com Services LLC, a Delaware Limited Liability Company, with its principal place of business located at 410 Terry Ave. North, Seattle, WA 98109 (hereinafter "Tenant").

SECTION 1: PREMISES AND TERM

1.1. Description of Premises. Landlord hereby leases to Tenant, and Tenant hereby leases from Landlord, the real property and all improvements thereon located at **74 Amity Street, Brooklyn, Kings County, NY 11201**, situated on the southeast corner of Amity Street and Hicks Street. The Premises consist of a **four-story building** with a total gross building area of approximately **5,431 square feet**. The underlying land area is approximately **1,875 square feet** , identified as **Block 295, Lot 7** in the tax records of the City of New York. The Premises are delivered in "As-Is" shell condition, as specified in recent valuation assessments.

1.2. Term.

The initial term of this Lease (the "Initial Term") shall be for a period of **fifteen (15) years**, commencing on June 1, 2024 (the "Commencement Date") and expiring on May 31, 2039, unless sooner terminated or extended as provided herein.

1.3. Lease Year Defined.

For the purposes of this Lease, a "Lease Year" shall mean each consecutive twelve (12) month period beginning on the Commencement Date.

1.4. Condition of Premises. Tenant acknowledges that the building is a **113-year-old structure** currently in **fair condition** and designated as a **legal, pre-existing, non-conforming use** within the **R6 / LH-1 (Limited Height District)**. Tenant accepts the Premises in its current state, suitable for the extensive renovations required for Tenant’s intended commercial use.

SECTION 2: RENT AND SECURITY

2.1. Base Rent.

Tenant shall pay to Landlord annual base rent ("Base Rent") in equal monthly installments, due on the first day of each calendar month. The Base Rent schedule is established as follows:

- **Years 1–5:** $434,480.00 per annum ($80.00/SF), payable at $36,206.67 per month.
- **Years 6–10:** $515,945.00 per annum ($95.00/SF), payable at $42,995.42 per month.
- **Years 11–15:** $624,565.00 per annum ($115.00/SF), payable at $52,047.08 per month.

2.2. Rent Commencement Date.

Notwithstanding the Commencement Date, Base Rent shall be abated for the first nine (9) months of the Initial Term (the "Abatement Period") to allow for Tenant's build-out and renovation of the shell building. Base Rent payments shall commence on March 1, 2025.

2.3. Triple Net (NNN) Obligations.

This is a "Triple Net" Lease. In addition to Base Rent, Tenant shall be responsible for all costs associated with the Premises, including but not limited to:

- **Real Estate Taxes:** Tenant shall pay 100% of all real property taxes and assessments. For the 2023/2024 tax year, the liability was recorded at **$27,261**.
- **Insurance:** Tenant shall maintain all insurance policies required under Section 5.
- **Maintenance and Utilities:** Tenant shall pay for all utilities and maintenance of the 4-story structure.

2.4. Security Deposit.

Upon execution of this Lease, Tenant shall provide a Security Deposit in the form of an irrevocable Letter of Credit in the amount of **$217,240.00** (equivalent to 6 months of Year 1 Base Rent).

SECTION 3: USE AND OCCUPANCY

3.1. Permitted Use. The Premises shall be used and occupied by Tenant solely for **corporate administrative offices, a specialized logistics research and development center, and an urban last-mile fulfillment laboratory**, and for no other purpose without the prior written consent of Landlord. Tenant acknowledges that the property is located in an **R6 zoning district within a Limited Height District (LH-1)**. While the current structure is a **legal, pre-existing, non-conforming use**, Tenant is responsible for ensuring that its specific commercial operations comply with all municipal regulations governing this designation.

3.2. Prohibited Uses.

Tenant shall not use the Premises for any purpose that:

- Violates any local, state, or federal law or ordinance.
- Overloads the floor's load-bearing capacity, which is assumed sufficient for the existing 4-story structure but has not been formally tested for heavy industrial machinery.
- Constitutes a public or private nuisance or interferes with the quiet enjoyment of neighboring residential properties in the **Cobble Hill and Brooklyn Heights neighborhoods**.

3.3. Compliance with Laws. Tenant shall, at its sole cost and expense, comply with all "Legal Requirements," including the Americans with Disabilities Act (ADA) and New York City building codes. Because the building was constructed circa **1900 (113+ years old)**, Tenant acknowledges that significant upgrades may be required to bring the **shell condition** into compliance for modern commercial use.

3.4. Continuous Occupancy. Tenant agrees to occupy the Premises throughout the Term. Given the property's location on the **southeast corner of Amity Street and Hicks Street**, Tenant shall maintain the exterior aesthetic in a manner consistent with the premiere residential character of the surrounding area.

SECTION 4: ALTERATIONS AND BUILD-OUT

4.1. Acceptance of Shell Condition. Tenant accepts the Premises in its current **"As-Is" shell condition**. Tenant acknowledges the building is currently a **four-story structure** with approximately **5,431 square feet** of gross building area.

4.2. Tenant's Initial Alterations (The "Amazon Build-out").

Tenant intends to perform an extensive renovation to convert the shell into a high-tech facility. This build-out shall include:

- **Structural Reinforcement:** Enhancing the existing frame to support server arrays and specialized logistics equipment.
- **Vertical Transportation:** Installation of a high-speed elevator system, as the current structure is a walk-up.
- **HVAC and Mechanicals:** Complete replacement of the existing boiler and mechanical systems, which were noted as being in **fair condition** during prior inspections.
- **Roofing:** Repair or replacement of the roof, which has a surface area corresponding to the **1,875 square foot** lot footprint.

4.3. Height and Bulk Restrictions. Tenant is strictly prohibited from increasing the height of the building beyond its current state or the **50-foot limit** mandated by the **LH-1**

Limited Height District. Any alterations that increase the building's bulk beyond the current **5,431 square feet** must be approved by the NYC Department of Buildings, noting that the current improvements already exceed the maximum **2.2 Floor Area Ratio (FAR)** permitted as-of-right.

4.4. Landlord's Consent.

Tenant shall not make any structural alterations without Landlord's prior written consent, which shall not be unreasonably withheld for improvements necessary for Tenant's Permitted Use.

SECTION 5: INSURANCE AND INDEMNIFICATION

5.1. Tenant's Insurance Requirements.

Tenant shall maintain the following insurance coverages:

- **Commercial General Liability (CGL):** Limits of no less than **$10,000,000** per occurrence and **$20,000,000** in the aggregate.
- **Property Insurance:** "All Risk" or "Special Form" property insurance covering the full replacement cost of the building and Tenant's improvements.
- **Flood Insurance:** Although the property is located in **Flood Zone X** (outside the 500-year flood plain), Tenant shall maintain flood coverage as a precaution given the proximity to the East River and Brooklyn Bridge Park.

5.2. Hazardous Substances. Tenant shall not bring, keep, or use any Hazardous Substances on the Premises. While the appraisal noted no visible evidence of toxic materials, Tenant is advised that in a building of this age (**built 1900**), there is a risk of lead-based paint or asbestos. Tenant assumes all liability for the remediation of any substances disturbed during its build-out.

5.3. Indemnification.

Tenant shall indemnify, defend, and hold Landlord harmless from and against any and all claims, losses, or liabilities arising from Tenant's use of the Premises or any work performed by Tenant therein.

SECTION 6: MAINTENANCE AND REPAIRS

6.1. Tenant's General Maintenance Obligations. Throughout the Term, Tenant shall, at its sole cost and expense, maintain the entire Premises in good, clean, and safe condition. This includes the four-story structure and all its components, regardless of whether the need for repair arises from Tenant's use, the age of the building (approx. 113 years), or the shell condition at delivery.

6.2. Structural Repairs. Tenant shall be responsible for all structural repairs, including but not limited to:

- The foundation and floor slabs.
- All exterior walls, including the brick masonry facade which must be maintained in accordance with the aesthetic standards of the **Cobble Hill Historic District** vicinity.
- The roof and roof membrane.
- All load-bearing elements.

6.3. Systems Maintenance. Tenant shall maintain and, if necessary, replace all mechanical, electrical, plumbing, heating, and cooling (HVAC) systems. Given the intended use as a logistics and R&D center, Tenant shall install and maintain industrial-grade fire suppression and life-safety systems (sprinklers, alarms) that meet or exceed NYC Building Code for commercial occupancy.

6.4. Sidewalks and Curb Cuts. Tenant shall be responsible for the maintenance, repair, and snow removal of the sidewalks adjacent to the property on both **Amity Street and Hicks Street**. Tenant shall maintain the integrity of any existing curb cuts, ensuring they remain compliant with NYC Department of Transportation regulations.

SECTION 7: TAXES AND UTILITIES

7.1. Real Estate Taxes. Tenant shall pay as "Additional Rent" all Real Estate Taxes levied against the Premises. For the purposes of this Lease, "Real Estate Taxes" shall include all ad valorem taxes, assessments, and sewer rents.

- **Base Tax Year:** The parties acknowledge the 2023/2024 tax assessment of **$27,261**.
- **Payment Method:** Tenant shall pay the New York City Department of Finance directly and provide Landlord with proof of payment no later than fifteen (15) days prior to the delinquency date.

7.2. Personal Property Taxes. Tenant shall pay all taxes charged against Tenant's trade fixtures, furnishings, equipment, and all other personal property (including high-value automation robotics or servers) located at the Premises.

7.3. Utilities. Tenant shall be responsible for the direct payment of all utility services to the respective providers, including:

- **Electricity:** Tenant shall contract for high-load electrical service (estimated requirement: 2,000 Amps) to support its R&D operations.
- **Water/Sewer:** Tenant shall pay all charges based on meter readings.
- **Gas:** Tenant shall be responsible for the heating gas supply for the building's central systems.
- **Data/Fiber:** Tenant is permitted to install proprietary fiber-optic lines from the street to the building, provided all necessary street-opening permits are obtained.

SECTION 8: DEFAULT AND REMEDIES

8.1. Events of Default. The occurrence of any of the following shall constitute an "Event of Default":

- **Monetary Default:** Failure to pay Base Rent or Additional Rent within five (5) business days of the due date.
- **Non-Monetary Default:** Failure to perform any other covenant under this Lease (e.g., maintenance or insurance) within thirty (30) days after written notice from Landlord.
- **Insolvency:** The filing of a petition for bankruptcy by or against Tenant (subject to applicable bankruptcy laws).

8.2. Landlord's Remedies. Upon an Event of Default, Landlord may, at its option:

1. Terminate this Lease and recover possession of the Premises.
2. Continue the Lease in effect and recover Rent as it becomes due, holding Tenant liable for any deficiency resulting from re-letting.
3. Perform the obligation on Tenant's behalf and charge Tenant 115% of the cost as Additional Rent (the "Self-Help Remedy").

8.3. Late Charges. If any installment of Rent is not paid within five (5) days of the due date, Tenant shall pay a late charge equal to **five percent (5%)** of the overdue amount to cover the administrative costs of handling the delinquency.

SECTION 9: SUBLETTING AND ASSIGNMENT

9.1. Landlord's Consent Required.

Tenant shall not assign this Lease, or sublet any part of the Premises, without the prior written consent of Landlord. Any attempted assignment or subletting without such consent shall be null and void.

9.2. Amazon Affiliate Exception.

Notwithstanding Section 9.1, Tenant may assign this Lease or sublease the Premises, or any portion thereof, without Landlord's consent, to any entity that controls, is controlled by, or is under common control with Amazon.com, Inc. (an "Affiliate"). Tenant shall provide Landlord with written notice of any such Affiliate transfer within thirty (30) days of the effective date.

9.3. Standard for Consent.

For all other requests, Landlord's consent shall not be unreasonably withheld, conditioned, or delayed, provided that:

- The proposed subtenant's financial strength is at least equivalent to Tenant's at the time of execution.
- The proposed use is consistent with the Permitted Use and the building's **legal, pre-existing, non-conforming** status.
- No Event of Default has occurred and is continuing.

9.4. Profits on Subletting.

In the event of a sublease or assignment to a non-Affiliate, Tenant shall pay to Landlord **fifty percent (50%)** of any "Transfer Profit" (defined as any rent or other consideration received by Tenant in excess of the Base Rent and Additional Rent payable hereunder, after deducting Tenant's reasonable costs of the transfer).

SECTION 10: LANDLORD'S ACCESS AND RIGHT OF ENTRY

10.1. Right of Entry.

Landlord and its authorized agents shall have the right to enter the Premises at all reasonable times, upon no less than **forty-eight (48) hours' prior notice** (except in the case of an emergency), for the purposes of:

- Inspecting the condition of the four-story structure.
- Making necessary repairs that Tenant has failed to perform.
- Showing the Premises to prospective purchasers or, during the final twelve (12) months of the Term, to prospective tenants.

10.2. Emergency Access.

In the event of an emergency (e.g., fire, flood, or structural failure), Landlord may enter the Premises at any time without prior notice. Landlord shall make reasonable efforts to notify Tenant's designated security operations center immediately upon entry.

10.3. Minimal Interference. Landlord shall use commercially reasonable efforts to minimize interference with Tenant's business operations during any entry. Tenant acknowledges that because the building is a **shell building** under extensive renovation, certain areas may be restricted for safety reasons.

SECTION 11: ENVIRONMENTAL INDEMNITY

11.1. Hazardous Materials Representation. Landlord represents that, to its actual knowledge and based on an inspection conducted on October 1, 2013, there is no visible evidence of toxic or hazardous substances at the site. However, Landlord does not warrant the absence of such materials due to the building's **113-year age**.

11.2. Tenant's Environmental Covenants.

Tenant shall not cause or permit any "Hazardous Materials" to be brought upon, kept, or used in or about the Premises by Tenant, its agents, or employees, except for cleaning and office supplies used in the ordinary course of business.

11.3. Remediation Responsibility. If Tenant's build-out or operations disturb any pre-existing hazardous materials (such as asbestos or lead-based paint common in buildings from **circa 1900**), Tenant shall be responsible for the legal disposal and remediation of such materials at its sole cost.

11.4. Indemnification.

Tenant shall indemnify and hold Landlord harmless from any and all claims, costs, or liabilities arising from a breach of this Section 11 by Tenant. This indemnity shall survive the expiration or earlier termination of this Lease.

SECTION 12: CASUALTY AND DAMAGE

12.1. Notice of Casualty. Tenant shall give Landlord immediate notice in case of fire or other casualty in the Premises. Given the building's **four-story masonry construction**, any fire or significant water damage requires immediate structural assessment by a licensed New York State engineer.

12.2. Landlord's Right to Terminate. If the Premises are damaged by fire or other casualty to such an extent that the cost of restoration, as estimated by Landlord's architect, exceeds **thirty-five percent (35%)** of the then-current replacement value of the building, Landlord may terminate this Lease by giving Tenant notice within sixty (60) days after the date of the damage.

12.3. Tenant's Right to Terminate. If the damage to the Premises is so extensive that Tenant cannot reasonably conduct its logistics or R&D operations, and Landlord's architect estimates that the repairs cannot be completed within **two hundred seventy (270) days**, Tenant may terminate this Lease upon thirty (30) days' notice.

12.4. Abatement of Rent. If the Lease is not terminated, Base Rent and Additional Rent shall be abated in proportion to the area of the Premises rendered unusable by Tenant for its Permitted Use until the repairs are substantially completed. However, there shall be no abatement for any damage caused by the negligence or willful misconduct of Tenant or its employees.

SECTION 13: CONDEMNATION

13.1. Total Taking. If the entire Premises are taken by any public or quasi-public authority under the power of eminent domain, this Lease shall terminate as of the date of the taking.

13.2. Partial Taking. If a portion of the Premises is taken that renders the remaining portion unsuitable for Tenant's continued operation (such as a taking of the **Hicks Street or Amity Street frontage** that eliminates access), Tenant may terminate this Lease. If the Lease is not terminated, the Rent shall be equitably reduced based on the square footage taken.

13.3. Award. All compensation awarded for any taking of the fee and the leasehold shall belong to Landlord. Tenant shall have the right to pursue a separate award for its moving expenses, the value of Tenant's trade fixtures (including specialized Amazon robotics), and any unamortized cost of Tenant's alterations.

SECTION 14: ESTOPPEL AND SUBORDINATION

14.1. Subordination. This Lease is and shall be subordinate to any mortgage, deed of trust, or other primary lien now or hereafter placed upon the Premises by Landlord. Tenant agrees to execute any documents required to effectuate such subordination, provided that the mortgagee enters into a standard **Non-Disturbance Agreement (SNDA)** ensuring Tenant's right to remain in possession so long as it is not in default.

14.2. Estoppel Certificates. Within ten (10) business days of a request by Landlord, Tenant shall execute and deliver an estoppel certificate certifying:

- That this Lease is in full force and effect.
- The date to which Rent has been paid.
- That there are no uncured defaults by Landlord (or specifying any such defaults).
- The current amount of the Security Deposit held by Landlord.

14.3. Financial Statements. Given Tenant's status as a publicly-traded entity (Amazon.com, Inc.), Landlord agrees that Tenant's publicly available SEC filings (Form 10-K and 10-Q) shall satisfy any requirement for the delivery of financial statements under this Lease.

SECTION 15: HOLDOVER

15.1. No Right to Holdover. Tenant has no right to retain possession of the Premises or any part thereof after the expiration or earlier termination of this Lease. In the event that Tenant remains in possession, such occupancy shall be deemed a **tenancy-at-sufferance** only, subject to all the terms and conditions of this Lease, except as to the amount of Rent.

15.2. Holdover Rent. During any period of unauthorized holdover, Tenant shall pay Base Rent at a rate equal to **one hundred fifty percent (150%)** of the Base Rent in effect during the last month of the Term, plus 100% of all Additional Rent (Taxes, Insurance, and Utilities).

15.3. Liability for Damages. If Tenant fails to vacate the Premises upon expiration, Tenant shall indemnify and hold Landlord harmless from all losses and damages, including "consequential damages" and "lost profits," resulting from such failure, including claims made by any succeeding tenant (such as a replacement logistics or retail operator) based on such delay.

SECTION 16: SIGNAGE AND EXTERIOR APPEARANCE

16.1. Tenant's Signage Rights. Subject to the approval of the New York City Landmarks Preservation Commission (if applicable, given the building's location near the **Cobble Hill**

Historic District) and the Department of Buildings, Tenant shall have the exclusive right to install corporate signage on the exterior of the building.

16.2. Signage Specifications.

- **Primary Sign:** One (1) non-illuminated or halo-lit "Amazon" or "Amazon Logistics" logo sign to be located on the Amity Street facade.
- **Secondary Sign:** One (1) blade sign or wall-mounted plaque at the Hicks Street entrance.
- **Prohibited Signage:** No neon, flashing, or digital billboard-style signage is permitted, in keeping with the residential character of the **LH-1 Limited Height District**.

16.3. Exterior Maintenance. Tenant shall keep all signage in good repair and shall be responsible for the cost of removal and restoration of the facade at the end of the Lease Term. Tenant shall ensure that any exterior lighting is directed away from the windows of adjacent residential buildings.

SECTION 17: QUIET ENJOYMENT

17.1. Landlord's Covenant. Landlord covenants and agrees that Tenant, upon paying the Rent and performing all the covenants and conditions of this Lease, shall and may peaceably and quietly have, hold, and enjoy the Premises for the Term, free from any disturbance or interruption by Landlord or any person claiming by, through, or under Landlord.

17.2. Interruption of Services. Tenant acknowledges that because the building is a **shell building** (as of the Effective Date), Landlord is not providing centralized services. Therefore, any interruption in utilities (water, electricity, gas) resulting from public utility failure or Tenant's own system maintenance shall not constitute a breach of the Covenant of Quiet Enjoyment or entitle Tenant to an abatement of Rent, except as expressly provided in Section 12 (Casualty).

SECTION 18: SURRENDER OF PREMISES

18.1. Condition at Surrender. Upon the expiration or earlier termination of this Lease, Tenant shall surrender the Premises to Landlord in "Broom Clean" condition and in good order and repair, ordinary wear and tear excepted.

18.2. Removal of Trade Fixtures. Tenant shall remove all its specialized equipment, including server racks, robotics, and proprietary logistics hardware. Any alterations that were deemed "Permanent Improvements" during the **Amazon Build-out** (such as the newly installed elevator or HVAC systems) shall, at Landlord's option, remain the property of Landlord and stay with the building.

SECTION 19: BROKERAGE

19.1. Representations. Landlord and Tenant each represent and warrant to the other that they have had no dealings with any person, firm, or agent in connection with the negotiation of this

Lease, other than **Cushman & Wakefield, Inc.** (representing Landlord) and **CBRE, Inc.** (representing Tenant).

19.2. Indemnification. Each party agrees to indemnify, defend, and hold the other harmless from and against any and all claims for brokerage commissions or finder's fees by any other person or entity claiming to have been engaged by the indemnifying party.

19.3. Commission Payment. Landlord shall be solely responsible for the payment of the brokerage commissions to Cushman & Wakefield, Inc. and CBRE, Inc. pursuant to a separate written agreement. Given the total aggregate lease value (approximately **$7,875,000** over the initial 15-year term), Landlord acknowledges that the commission is a material closing cost.

SECTION 20: NOTICES

20.1. Delivery of Notices. All notices, demands, or requests required or permitted to be given under this Lease must be in writing and shall be deemed to have been given when (a) delivered by hand, (b) sent by a nationally recognized overnight courier service (e.g., FedEx or UPS), or (c) sent by certified mail, return receipt requested.

20.2. Notice Addresses.

- **To Landlord:** Amity Holdings LLC Attn: Property Manager 1290 Avenue of the Americas New York, NY 10104 *With a copy to:* Cozen O'Connor, 277 Park Avenue, New York, NY 10172.
- **To Tenant:** Amazon.com Services LLC Attn: Real Estate Manager (Ref: BNY-74AMITY) 410 Terry Ave. North Seattle, WA 98109 *With a copy to:* Amazon Legal Department, P.O. Box 81226, Seattle, WA 98108.

20.3. Change of Address. Either party may change its address for notice by giving the other party ten (10) days' prior written notice.

SECTION 21: FORCE MAJEURE

21.1. Definition. For the purposes of this Lease, "Force Majeure" shall include, but not be limited to, strikes, lockouts, labor disputes, acts of God, inability to obtain labor or materials (including specialized components for Amazon’s logistics build-out), enemy action, civil commotion, fire, or other casualty, and any other causes beyond the reasonable control of the party required to perform.

21.2. Extension of Performance. If either party is delayed or prevented from performing any act required under this Lease (other than the payment of Rent) by reason of Force Majeure, the period for performance of such act shall be extended for a period equal to the period of such delay.

21.3. Payment of Rent. Notwithstanding anything in Section 21.2 to the contrary, Force Majeure shall **not** excuse Tenant from the prompt payment of Base Rent, Additional Rent, or any

other monetary obligation under this Lease, except as specifically provided in the Casualty (Section 12) or Condemnation (Section 13) provisions.

SECTION 22: RENEWAL OPTIONS

22.1. Option to Extend. Tenant shall have the right and option to extend the Term of this Lease for **two (2) additional periods of five (5) years each** (each an "Extension Term").

22.2. Exercise of Option. Tenant must exercise each option by giving Landlord written notice at least **twelve (12) months** prior to the expiration of the then-current Term.

22.3. Extension Rent. The Base Rent for each Extension Term shall be the "Fair Market Rent" for comparable shell-plus-renovated commercial space in the Brooklyn Heights/Cobble Hill submarket, but in no event shall it be less than the Base Rent paid during the final year of the preceding Term.

Continuing the lease agreement for **74 Amity Street, Brooklyn, NY**. This eighth installment covers legal limitations, administrative details, and the "boilerplate" provisions that ensure the contract is enforceable under New York law.

SECTION 23: LIMITATION OF LANDLORD LIABILITY

23.1. Exculpation. Tenant agrees that it shall look solely to Landlord's equity in the real property at 74 Amity Street for the collection of any judgment (or other judicial process) requiring the payment of money by Landlord. No other assets of Landlord, or its members, managers, or partners, shall be subject to levy, execution, or other procedures for the satisfaction of Tenant's remedies.

23.2. Transfer of Interest. In the event of a sale or transfer of the Building, Landlord shall be released from all liability for the performance of Landlord's covenants thereafter occurring, provided the purchaser assumes all of Landlord's obligations under this Lease in writing.

SECTION 24: RECORDING

24.1. Memorandum of Lease. Tenant shall not record this Lease. However, at the request of either party, both parties shall execute and deliver a "Memorandum of Lease" in recordable form, setting forth the names of the parties, the description of the Premises, the Term, and the Renewal Options. The cost of recording the Memorandum and any associated New York City/State "Real Property Transfer Taxes" related to the leasehold interest shall be borne by Tenant.

SECTION 25: MISCELLANEOUS PROVISIONS

25.1. Governing Law. This Lease shall be governed by, and construed in accordance with, the laws of the State of New York. Any legal action arising out of this Lease shall be brought in the Supreme Court of the State of New York, County of Kings.

25.2. Entire Agreement. This Lease, including all Exhibits attached hereto (Exhibit A: Site Plan; Exhibit B: Legal Description), contains the entire agreement between the parties. No prior oral or written agreements or understandings shall be effective.

25.3. Waiver of Jury Trial. LANDLORD AND TENANT HEREBY WAIVE THEIR RESPECTIVE RIGHTS TO TRIAL BY JURY IN ANY ACTION OR PROCEEDING BROUGHT IN CONNECTION WITH THIS LEASE.

25.4. No Partnership. Nothing contained in this Lease shall be deemed or construed by the parties or by any third party to create the relationship of principal and agent, or of partnership, or of joint venture between Landlord and Tenant.

25.5. Severability. If any provision of this Lease is found to be invalid or unenforceable, the remainder of this Lease shall not be affected and shall remain in full force.

25.6. Estoppel. Tenant acknowledges that as of the date of execution, Landlord has delivered the **four-story shell building** in the condition described in the Appraisal dated October 1, 2013, and no representations regarding the structural capacity for Amazon's proprietary robotics systems have been made by Landlord.

SECTION 26: SECURITY AND ACCESS (AMAZON SPECIFIC)

26.1. High-Security Protocol. Given the sensitive nature of Tenant's R&D and logistics data, Tenant is permitted to install internal and external security systems, including biometric scanners, CCTV, and physical barriers, provided they do not damage the building's facade or violate the **LH-1 Limited Height District** aesthetic guidelines.

26.2. 24/7 Operations. Tenant shall have the right to access and operate the Premises twenty-four (24) hours a day, seven (7) days a week, three hundred sixty-five (365) days a year, including all holidays.

SECTION 27: CONFIDENTIALITY AND PUBLIC ANNOUNCEMENTS

27.1. Confidential Information. Landlord and Tenant acknowledge that the terms of this Lease, including the Base Rent, Abatement Period, and the specific nature of Tenant’s logistics research, are confidential. Neither party shall disclose such information to any third party (other than their respective legal counsel, accountants, lenders, or as required by law) without the prior written consent of the other party.

27.2. Public Announcements. Tenant shall have the sole right to issue the initial press release or public announcement regarding its occupancy of the Premises. Landlord shall not use "Amazon"

or any Amazon logo in its marketing materials or on its website without Tenant's prior written approval via the Amazon Global Real Estate PR team.

27.3. Non-Disclosure of Proprietary Technology. Landlord acknowledges that during any permitted entry under Section 10, Landlord may be exposed to Tenant's proprietary "last-mile" logistics technology or robotics. Landlord agrees that it will not photograph, record, or disclose any such technology to third parties.

SECTION 28: COUNTERPARTS AND ELECTRONIC SIGNATURE

28.1. Counterparts. This Lease may be executed in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

28.2. Electronic Signature. The parties agree that the execution of this Lease may be effected by electronic signature (e.g., DocuSign), which shall be legal and binding to the same extent as a hand-written signature.

SECTION 29: ENTIRE AGREEMENT AND AMENDMENTS

29.1. Entire Agreement. This Lease, including the Exhibits and Schedules attached hereto, constitutes the entire agreement between Landlord and Tenant. There are no oral agreements between the parties.

29.2. Amendments. This Lease may not be amended or modified except by a written instrument signed by both Landlord and Tenant.

EXHIBIT A: LEGAL DESCRIPTION

ALL THAT CERTAIN PLOT, PIECE OR PARCEL OF LAND, with the buildings and improvements thereon erected, situate, lying and being in the Borough of Brooklyn, County of Kings, City and State of New York, bounded and described as follows:

BEGINNING at the corner formed by the intersection of the southerly side of Amity Street and the easterly side of Hicks Street; **RUNNING THENCE** easterly along the southerly side of Amity Street, **25 feet**; **THENCE** southerly parallel with Hicks Street, **75 feet**; **THENCE** westerly parallel with Amity Street, **25 feet** to the easterly side of Hicks Street; **THENCE** northerly along the easterly side of Hicks Street, **75 feet** to the point or place of **BEGINNING**.

Situs Address: 74 Amity Street, Brooklyn, NY 11201 **Tax Map Designation:** Block 295, Lot 7.

EXHIBIT B: TENANT'S INITIAL CONSTRUCTION SPECIFICATIONS

Tenant's build-out of the **5,431 SF** four-story shell shall include, at a minimum, the following:

B.1. Structural Upgrades.

- Installation of reinforced steel beams on the 2nd and 3rd floors to accommodate a floor load of **150 lbs/SF** for server racks and robotic sorting units.
- Seismic retrofitting as required by the New York City Building Code for a structure built **circa 1900**.

B.2. Vertical Transportation.

- Construction of a new elevator shaft and installation of one (1) freight/passenger hybrid elevator serving floors 1 through 4 and the roof.

B.3. Life Safety.

- Installation of a fully monitored NFPA 13-compliant wet-pipe sprinkler system throughout all four floors.
- Integration of a Class E fire alarm system with direct connection to the FDNY.

B.4. Building Envelope.

- Restoration of the masonry facade on both the Amity Street and Hicks Street elevations, ensuring all mortar joints are repointed using historically appropriate materials.
- Installation of high-efficiency, dual-pane windows that maintain the original "arch" aesthetic of the shell structure.

EXHIBIT C: RULES AND REGULATIONS

C.1. Neighborhood Sensitivity and Noise Control. Tenant acknowledges that the Premises are located at the intersection of **Amity and Hicks Streets**, directly adjacent to residential dwellings.

- **Loading Operations:** All deliveries via Amazon-branded or third-party vehicles must occur between the hours of 8:00 AM and 7:00 PM.
- **Idle Engines:** Vehicles are strictly prohibited from idling on Amity Street for more than three (3) minutes, in compliance with NYC Administrative Code § 24-163.
- **Acoustic Insulation:** As part of the **Amazon Build-out**, Tenant shall install sound-dampening insulation on the interior of all four floors to ensure that noise from robotic sorting systems or server cooling fans does not exceed **45 decibels** at the property line.

C.2. Refuse and Waste Management.

- **Containment:** All trash and recycling must be stored internally within the four-story structure. No refuse containers are permitted to be placed on the sidewalk except during the designated hour prior to pickup.

- **Electronic Waste:** Given the R&D nature of the use, Tenant must provide a specialized disposal plan for lithium-ion batteries and decommissioned server hardware, ensuring no hazardous e-waste enters the standard NYC waste stream.

C.3. Roof Access and Equipment.

- Tenant is permitted to install satellite arrays and HVAC condensers on the roof.
- All rooftop equipment must be "screened" from street-level view using materials approved by the Landmarks Preservation Commission, ensuring the building does not exceed the **50-foot height limit** of the **LH-1 District**.

C.4. Security Guard Posts.

- Tenant may maintain a 24-hour security presence. Security personnel must remain inside the building or within the immediate vestibule and are prohibited from loitering on the sidewalk.

SECTION 30: STANDARD OPERATING PROCEDURES (SOP) FOR BUILDING OPERATIONS

To ensure the longevity of the **113-year-old masonry shell**, Tenant shall adhere to the following operational protocols:

30.1. Floor Load Management Protocol.

As the building's gross area is **5,431 SF** spread across four floors, vertical weight distribution is critical.

- **Heavy Equipment Zone:** High-density server racks and "Kiva" robotic units shall be restricted to the Ground Floor and 2nd Floor.
- **Weight Sensors:** Tenant shall install digital floor-load sensors on the 3rd and 4th floors. If weight exceeds **100 lbs/SF** in these non-reinforced zones, an automated alert must be sent to Tenant’s facilities manager.

30.2. Facade Preservation Program.

- **Annual Inspection:** Every twelve (12) months, Tenant shall hire a licensed mason to inspect the brickwork for "spalling" or "efflorescence," particularly on the Hicks Street exposure which is subject to high wind-driven rain.
- **Cleaning:** The facade shall be cleaned using low-pressure water only. Chemical abrasives are strictly prohibited as they may damage the historical integrity of the brick.

30.3. HVAC and Environmental Controls.

- **Climate Consistency:** To prevent structural expansion and contraction in the aging shell, Tenant shall maintain a consistent internal temperature between **68°F and 74°F**.
- **Humidity Control:** Due to the sensitivity of both the building's old-growth timber joists and Amazon's high-tech servers, humidity levels must be maintained at **45% (+/- 5%)**.

30.4. Vertical Logistics (Elevator SOP).

- The newly installed elevator is the primary means of moving goods between the four floors.
- **Preventative Maintenance:** Tenant shall enter into a "Gold Level" maintenance contract with an elevator service provider (e.g., Otis or Schindler) including monthly safety tests and 24/7 emergency call-out service.

30.5. Fire Suppression Testing.

- **Quarterly Drills:** Tenant shall conduct quarterly fire evacuation drills.
- **System Testing:** The wet-pipe sprinkler system must be flow-tested every six (6) months, with results transmitted to Landlord's insurance carrier.

Continuing the lease agreement for **74 Amity Street, Brooklyn, NY**. This eleventh installment introduces the formal mechanisms for financial verification (Estoppel), the protection of Tenant's rights in the event of a foreclosure (SNDA), and the legal framework for resolving disputes outside of the court system.

EXHIBIT D: FORM OF ESTOPPEL CERTIFICATE

TO: [Insert Name of Lender or Purchaser] **RE:** Lease dated January 1, 2024, by and between Amity Holdings LLC ("Landlord") and Amazon.com Services LLC ("Tenant") for the premises at 74 Amity Street, Brooklyn, NY (the "Lease").

The undersigned Tenant hereby certifies to [Lender/Purchaser] as follows:

1. **Lease Status:** The Lease is in full force and effect and has not been assigned, modified, supplemented, or amended in any way.
2. **Commencement Date:** The Commencement Date was June 1, 2024. The current Term expires on May 31, 2039.
3. **Rent:** The current annual Base Rent is **$434,480.00**. Rent has been paid through [Date]. No Rent has been paid more than one (1) month in advance.
4. **Security Deposit:** The Landlord holds a Security Deposit in the amount of **$217,240.00** in the form of a Letter of Credit.
5. **Condition of Premises:** To the best of Tenant's knowledge, Landlord has completed all "Landlord's Work" regarding the shell condition, and Tenant has accepted the Premises.
6. **No Default:** To the best of Tenant's knowledge, there are no uncured defaults on the part of the Landlord or Tenant.

7. **Renewal Options:** Tenant has **two (2) options** to extend the Term for five (5) years each.

EXHIBIT E: SUBORDINATION, NON-DISTURBANCE, AND ATTORNMENT (SNDA)

This SNDA is entered into between [Lender Name] ("Lender"), Landlord, and Tenant.

E.1. Subordination. Tenant agrees that the Lease is and shall be subordinate to the Lien of the Mortgage held by Lender on the real property located at Block 295, Lot 7, Kings County.

E.2. Non-Disturbance. So long as Tenant is not in default under the terms of the Lease, Lender agrees that:

- Tenant's possession of the Premises shall not be disturbed or interrupted by Lender in the exercise of any of its rights under the Mortgage.
- Tenant shall not be named as a party defendant in any foreclosure action.

E.3. Attornment. If Lender (or its successor) acquires title to the Premises through foreclosure or deed-in-lieu of foreclosure, Tenant shall "attorn" to Lender as its new Landlord. The Lease shall continue in full force and effect as a direct lease between Lender and Tenant.

SECTION 31: DISPUTE RESOLUTION AND ARBITRATION

31.1. Executive Negotiation. In the event of any dispute, claim, or controversy arising out of or relating to this Lease, the parties shall first attempt in good faith to resolve the matter through negotiations between senior executives of Landlord and Tenant who have authority to settle the controversy.

31.2. Mediation. If the dispute is not resolved within thirty (30) days of the initial meeting, the parties agree to participate in at least four (4) hours of non-binding mediation in the City of New York before a mutually agreed-upon mediator.

31.3. Binding Arbitration. If mediation fails, the dispute shall be settled by binding arbitration administered by the **American Arbitration Association (AAA)** in accordance with its Commercial Arbitration Rules.

- **Location:** The arbitration shall take place in Kings County, NY.
- **Panel:** The dispute shall be heard by a single arbitrator who is a retired New York State Supreme Court Justice or a real estate attorney with at least twenty (20) years of experience in NYC commercial leasing.

- **Scope:** The arbitrator shall have no power to award punitive or exemplary damages. The award of the arbitrator shall be final and binding, and judgment on the award may be entered in any court having jurisdiction.

31.4. Costs and Fees. The prevailing party in any arbitration or legal proceeding shall be entitled to recover its reasonable attorneys' fees, expert witness fees, and costs from the non-prevailing party.

SECTION 32: ROOF RIGHTS AND TELECOMMUNICATIONS

32.1. Exclusive Roof Rights. Tenant shall have the exclusive right to use the roof of the 4-story building for the installation of telecommunications equipment, satellite dishes, and specialized atmospheric sensors required for its logistics R&D.

32.2. Structural Integrity. Tenant's engineer must certify that any equipment placed on the roof does not exceed the structural load limits of the building. Tenant shall be responsible for any leaks or damage to the roof membrane caused by the installation or maintenance of such equipment.

SECTION 33: COMPLIANCE WITH ANTI-CORRUPTION AND SANCTIONS LAWS

33.1. Representations and Warranties. Tenant represents and warrants that neither it nor any of its subsidiaries, nor any director or officer of Tenant, is an entity or person that is:

- The subject of any sanctions administered or enforced by the U.S. Department of the Treasury's Office of Foreign Assets Control (**OFAC**), the U.S. Department of State, or the United Nations Security Council.
- Located, organized, or resident in a country or territory that is the subject of comprehensive territorial sanctions.

33.2. Anti-Corruption. Tenant shall comply with all applicable anti-corruption laws, including the **U.S. Foreign Corrupt Practices Act (FCPA)**. Tenant agrees that no part of the Rent or other payments made under this Lease are derived from any illegal activity or "money laundering" as defined by the Bank Secrecy Act.

SECTION 34: NOTICE OF LEASE / MEMORANDUM

34.1. Non-Recordation. The parties agree that this Lease shall not be recorded in the Office of the City Register of the City of New York.

34.2. Recordable Memorandum. Upon request of either party, both parties shall execute and deliver a "Memorandum of Lease" in a form sufficient for recording under New York Real Property Law. This Memorandum shall include the essential terms of the Lease (Parties,

Premises, Term, and Renewal Options) but shall exclude specific financial details such as the Base Rent schedule.

34.3. Expenses. Tenant shall be responsible for all costs associated with the recording of the Memorandum, including but not limited to:

- New York City Real Property Transfer Tax (**RPTT**).
- New York State Real Estate Transfer Tax.
- Recording fees and automated city register information system (ACRIS) processing fees.

SECTION 35: LANDLORD'S LIENS AND TENANT'S FINANCING

35.1. Waiver of Landlord's Statutory Lien. Landlord hereby waives any and all statutory or common law liens it may have upon Tenant's personal property, trade fixtures, and inventory (including but not limited to Amazon's proprietary robotics, "Kiva" units, and high-density server racks) located within the Premises.

35.2. Tenant's Equipment Financing. Landlord acknowledges that Tenant may enter into financing arrangements or equipment leases for its specialized R&D hardware. Landlord agrees to execute a "Lien Waiver" or "Collateral Access Agreement" in a form reasonably requested by Tenant's lenders, permitting such lenders to enter the Premises to remove Tenant's equipment following an equipment-specific default, provided the lender repairs any damage caused by such removal.

SECTION 36: ROOF AND FACADE ENVELOPE (TECHNICAL ADDENDUM)

36.1. Historical Preservation Compliance. Given the building's **circa 1900 construction**, any penetrations to the roof or facade for Amazon's communications equipment must be "self-flashing" and comply with the Department of Buildings (DOB) technical standards for masonry structures.

36.2. Masonry Breathability. Tenant's build-out shall ensure that the interior insulation does not create a "vapor trap" that leads to the degradation of the historical brick shell. Tenant must utilize high-performance, vapor-permeable membranes consistent with the restoration of early 20th-century Brooklyn industrial buildings.

SECTION 37: SAFETY AND HAZARDOUS MATERIALS PROTOCOL

37.1. Occupational Safety. Tenant shall maintain the Premises in a manner that ensures the safety of all employees, contractors, and visitors. Given the high-tech nature of the **Amazon R&D Facility**, Tenant shall implement a comprehensive "Safety First" program, including clearly marked emergency exits and high-visibility floor markings in areas where automated robotics are active.

37.2. Lithium-Ion Battery Storage. Tenant may utilize lithium-ion batteries for its fleet of robotic sorting units. All charging stations must be installed according to **NYC Fire Code Section 608**, requiring:

- Dedicated fire-rated enclosures for charging areas.
- Automatic smoke detection and specialized chemical fire suppression systems.
- Ventilation systems capable of exhausting potential thermal runaway off-gasses directly to the exterior, bypassing the building's central air handling.

37.3. Existing Environmental Conditions. As established in the 2013 property assessment, the building is an older masonry shell. If Tenant's renovation activities encounter pre-existing lead-based paint, asbestos-containing materials (ACM), or contaminated soil beneath the **1,875 SF footprint**, Tenant shall manage the abatement in strict accordance with NYC Department of Environmental Protection (DEP) regulations.

SECTION 38: TERMINATION OF PRIOR AGREEMENTS

38.1. Merger Clause. This Lease contains all of the covenants, agreements, terms, provisions, and conditions relating to the leasing of the Premises. There are no other agreements, representations, or warranties, oral or written, between the parties or their representatives.

38.2. Survival of Obligations. Any obligations of the parties which, by their nature, would continue beyond the termination or expiration of this Lease (including indemnification for environmental or third-party claims) shall survive such termination or expiration.

SECTION 39: WAIVER OF COUNTERCLAIMS AND JURY TRIAL

39.1. Waiver of Counterclaim. In the event Landlord commences any summary proceeding for non-payment of Rent, Tenant hereby waives the right to interpose any counterclaim of whatever nature or description in any such proceeding. This waiver does not prevent Tenant from bringing a separate action for any claims it may have against Landlord.

39.2. Specific Performance. In the event of a default by Landlord, Tenant's exclusive remedy shall be an action for damages or specific performance. In no event shall Tenant have the right to terminate this Lease except as expressly provided in Section 12 (Casualty) or Section 13 (Condemnation).

SECTION 40: HISTORIC DISTRICT COMPLIANCE (ADDENDUM)

40.1. Preservation Standards. Because the property is located in the vicinity of the **Cobble Hill Historic District**, Tenant shall ensure that the exterior of the **four-story building** is maintained in a manner that preserves its architectural character. Any structural repairs to the brickwork must utilize "Type N" lime-based mortar to prevent damage to the original 113-year-old bricks.

40.2. Window Restoration. Tenant shall replace all existing window units with high-performance, thermally-broken aluminum or wood frames that replicate the original multi-pane "industrial sash" look prevalent in Brooklyn commercial shells from the early 20th century.

SECTION 41: OPERATING EXPENSES (NNN DEFINITIONS)

41.1. Tenant's Absolute Responsibility. This Lease is a "Triple Net" (NNN) Lease. Tenant shall be responsible for all costs, charges, and expenses of every kind and nature whatsoever, foreseen or unforeseen, relating to the Premises which may arise or become due during the Term.

41.2. Components of Operating Expenses. Included in the Tenant's obligations, but not limited to, are:

- **Structural Integrity:** Costs for maintaining the 113-year-old masonry and foundation.
- **Capital Improvements:** Any replacements of mechanical systems, including the high-capacity HVAC units required for Amazon's server density.
- **Life Safety:** Monthly monitoring and annual certification of the fire suppression and alarm systems.
- **Compliance Costs:** Any expenses related to Local Law 11 (facade inspections) or Local Law 97 (carbon emissions limits) applicable to the building.

SECTION 42: AUDIT RIGHTS AND DISPUTED COSTS

42.1. Landlord's Right to Audit. Because Tenant is responsible for direct payment of Taxes and Utilities (Section 7), Landlord shall have the right, once per Lease Year, to audit Tenant's payment records to ensure no liens (such as water/sewer liens) are being placed against the property at **Block 295, Lot 7**.

42.2. Tenant's Right to Dispute. If Landlord performs any "Self-Help" maintenance under Section 8.2 and charges Tenant for the cost, Tenant shall have the right to audit Landlord's invoices and payroll records related to such work.

42.3. Audit Procedure. Any audit shall be conducted during normal business hours at the auditing party's expense. If an audit reveals an overcharge or underpayment of more than **three percent (3%)**, the party responsible for the error shall reimburse the other party for the reasonable cost of the audit.

SECTION 43: PARKING, LOADING, AND LOGISTICS

43.1. No On-Site Parking. Tenant acknowledges that the **1,875 SF lot** is fully occupied by the footprint of the **four-story building**. No on-site parking or dedicated loading docks exist.

43.2. Curbside Loading Protocol.

- **Designated Zone:** Tenant shall apply to the NYC Department of Transportation (DOT) for a "Commercial Loading Zone" designation on the Hicks Street side of the building.

- **Traffic Mitigation:** Given the proximity to the **Brooklyn-Queens Expressway (BQE)** entrance/exit ramps, Tenant must schedule large freight deliveries to avoid peak morning (7:00 AM – 9:00 AM) and evening (4:00 PM – 6:00 PM) congestion.

43.3. Last-Mile Delivery Hub Operations. If Tenant utilizes the Ground Floor for "last-mile" sorting, Tenant shall ensure that delivery couriers (bicycles, electric scooters, or vans) do not obstruct the pedestrian right-of-way on Amity Street. All sorting and staging of packages must occur strictly within the interior of the building.

SECTION 44: SUSTAINABILITY AND ENERGY EFFICIENCY

44.1. Green Building Initiatives. As part of Amazon's "Climate Pledge," Tenant is permitted to install energy-efficiency upgrades, including:

- **Solar Arrays:** Photovoltaic panels on the roof, provided they comply with the **LH-1 Limited Height District** restrictions.
- **Smart Lighting:** Motion-sensor LED lighting throughout the 5,431 SF interior.
- **Sub-Metering:** Installation of advanced digital meters to track real-time energy consumption of the R&D hardware.

44.2. Carbon Emissions Compliance. Tenant shall be responsible for any fines or penalties levied under **NYC Local Law 97** (Climate Mobilization Act) resulting from Tenant's energy use.

SECTION 45: MECHANIC'S LIENS AND ENCUMBRANCES

45.1. Prohibition of Liens. Tenant shall not suffer or permit any mechanic's lien, materialman's lien, or other encumbrance to be filed against the Premises (Block 295, Lot 7) by reason of work, labor, services, or materials supplied to Tenant.

45.2. Discharge of Liens. If any such lien is filed against the four-story structure, Tenant shall, within **thirty (30) days** after receiving notice of the filing, cause the same to be discharged of record by payment, deposit, or bonding. If Tenant fails to discharge the lien within this period, Landlord may (but shall not be obligated to) discharge the same and charge Tenant **120% of the cost** as Additional Rent, due immediately.

SECTION 46: GOVERNING LAW AND SUBMISSION TO JURISDICTION

46.1. Choice of Law. This Lease and the rights and obligations of the parties hereunder shall be governed by and construed in accordance with the internal laws of the **State of New York**, without regard to its conflict of law principles.

46.2. Consent to Jurisdiction. Any legal action, suit, or proceeding arising out of or relating to this Lease shall be instituted in the **Supreme Court of the State of New York, County of Kings (Commercial Division)**. Each party irrevocably submits to the exclusive jurisdiction of such court.

SECTION 47: CONSTRUCTION OF LEASE

47.1. Rule of Construction. The parties acknowledge that both Landlord and Tenant are sophisticated commercial entities (with Tenant being a Global Fortune 500 company) and have had the opportunity to be represented by legal counsel. Accordingly, the rule of construction that a document is to be construed against the drafting party shall not be applied to this Lease.

47.2. Descriptive Headings. The captions and section headings in this Lease are for convenience of reference only and shall not define or limit any of the terms or provisions hereof.

SECTION 48: BROKERAGE DISCLOSURE (REITERATED)

48.1. Agency Disclosure. Pursuant to New York Real Property Law, the parties acknowledge that they were informed in writing that **Cushman & Wakefield, Inc.** represented the Landlord (Amity Holdings LLC) and **CBRE, Inc.** represented the Tenant (Amazon.com Services LLC) in this transaction.

SIGNATURE PAGE

IN WITNESS WHEREOF, the parties hereto have duly executed this Lease Agreement under seal as of the day and year first above written.

LANDLORD: AMITY HOLDINGS LLC A New York Limited Liability Company

By: _____ Name: Robert Nardella Title: Managing Member

Date: January 1, 2024

TENANT: AMAZON.COM SERVICES LLC A Delaware Limited Liability Company

By: _____ Name: [Authorized Signatory] Title: Vice President, Global Real Estate & Facilities

Date: January 1, 2024